EnergyWave energywave.ai • Capital Readiness — terms, use of funds and three-month objectives
15 October 2026 · DD-2026-10-15-r5.7-draft

CONFIDENTIAL — DRAFT — FOR DISCUSSION

# A three-month bridge to capital readiness. For close friends, family and angel groups — and it may combine with the Seed Round.

The Oct-13 materials describe a $60,000 SAFE that stands up both entities, secures the IP position and funds the founder full-time, so that at the end of ninety days EnergyWave is an entity that can be invested in, with a filed IP position, a reviewed first module, written go / no-go criteria and a prepared next round. On 15 October 2026 the founder stated that no SAFE has been executed and no funding has been raised, that the current amount, instrument and allocation are **[TBD]**, and that this round — for close friends, family and angel investment groups — may be combined with the Seed Round (ledger S-44). The Oct-13 figures are kept below as the dated proposal they were; the originals are unchanged.

## THE INSTRUMENT

| Term | Value | Status |
|---|---|---|
| Amount | $60,000 (Oct-13 deck — a dated proposal). Current: **[TBD] — amount** | DECK · HISTORICAL |
| Instrument | SAFE (Oct-13 deck). None executed (founder, 15 Oct 2026). **[TBD] — instrument** | DECK · HISTORICAL |
| Runway | 3 months, founder full-time (Oct-13 deck) | DECK |
| Cap / discount / MFN | “Set with counsel” (deck). **[TBD] — cap, discount, MFN** | [TBD] |
| Issuer | EnergyWave, Inc. (Delaware) — not formed (founder, 14 Oct); K&L Gates handling the entity work (15 Oct) — not formation evidence | OPEN — D3 |
| Strategic path | In-Q-Tel (deck) — a founder-selected target, not a relationship | DECK |
| Audience | Close friends, family, angel groups (15 Oct); may combine with the Seed Round — **[TBD] — combined structure** | FOUNDER-STATED |
| Executed to date | **No SAFE executed; no funding raised** (founder, 15 Oct 2026) | FOUNDER-STATED |

## USE OF FUNDS (OCT-13 DECK, ESTIMATED ALLOCATION — HISTORICAL PROPOSAL)

| Line | Purpose | Amount |
|---|---|---|
| Entity formation & legal | C-corp + 501(c)(3) setup | $4,000 |
| IP / patent counsel retainer | K&L Gates — provisional filings | $25,000 |
| Founder runway | 3 months, full-time | $24,000 |
| Reserve & travel | Investor / advisor meetings | $7,000 |
| **Total** | **Capital-readiness round** | **$60,000** |

As printed on deck slide 11 — a dated proposal. Current allocation: **[TBD] — allocation**.

### WHAT COUNSEL HAS ACTUALLY QUOTED — DATED, VERBATIM WHERE IT MATTERS

| Item | Counsel's words | Source |
|---|---|---|
| Coversheet provisional | "we can file a coversheet provisional application for $2,000, which covers some app and claim prep." | Dennis Majewski, K&L Gates, 5 Oct 2026 (M-19) |
| Non-provisional | "The cost to prepare a non-provisional application depends on the number of embodiments and length of the application. Typical ranges are between $10k to $20k." | same |
| Filing mechanics | "We would file the application in the name of the inventors, then later assign to the company after it is formed." | same |
| Formation | "We approximate around $2800 for the work to look into the current EnergyWave DE entity, draft the formation and organizational docs (Bylaws, Certification of Incorporation, Organizational Consent, and SS-4 application), and account for the filing fees …" | Trinh Truong, K&L Gates, 5 Oct 2026 (M-19) |

Read against the deck: the $4,000 entity line covers counsel's ~$2,800 formation estimate with margin but not yet the 501(c)(3) application, and the $25,000 IP line covers a coversheet provisional ($2,000) and most of a non-provisional ($10–20k). Neither quote is an engagement; no fee-authorization evidence is included in this package. OPEN

### THREE-MONTH OBJECTIVES — AND WHAT "DONE" MEANS FOR EACH

| # | Objective (deck) | Evidence that closes it | Today |
|---|---|---|---|
| 1 | Form both entities and establish the IP strategy with K&L Gates; file initial provisional protection | Delaware certificate and file number for EnergyWave, Inc. (K&L Gates is handling the entity work — founder, 15 Oct 2026); EIN; counsel's answers to the four formation questions; a coversheet provisional filed in the inventors' names with its application number; 501(c)(3) formation documents. | OPEN |
| 2 | Complete the technical review of the Sweet module and define the humanoid power-budget specification | A written characterization plan with pre-registered pass / kill criteria; a power-budget specification for simultaneous human-grade sensing and motion against lithium-ion; both reviewed by the technical principals. | OPEN |
| 3 | Define measurable go / no-go criteria and prepare the next round | Gate criteria published to investors before any result; the Seed Round package (amount, milestones, use of funds) built from the raise model with every placeholder validated. | OPEN |

### CAPITAL RAISED TO DATE

Two dated founder statements, both preserved. **9 October 2026** (for the xTech application): approximately **$10,000** including founder contributions; no outside debt or equity. **15 October 2026**: no funding has been raised and no SAFE has been executed. The later statement controls the current founder-reported status; the accounting basis that reconciles the two — founder contributions against outside funding — is not established here and is not redefined silently: **[TBD] — reconciliation of the 9 Oct ≈ $10,000 record with the 15 Oct no-funding statement**. A competition prize is not capital raised and is not counted here. FOUNDER-STATED

### WHY A BRIDGE — AND HOW IT RELATES TO THE SEED ROUND

The Oct-13 materials say "not a seed round", and they are preserved as written. On 15 October 2026 the founder directed that this round — for close friends, family and angel investment groups — may be combined with the Seed Round; the three-stage folder structure stands, this page is not relabelled a seed document, and the

combined structure is **[TBD]**. The Seed Round is the round the bridge is designed to reach, and it is defined only once the entity exists, the first module is reviewed and the criteria are written. Its amount and terms are the founder's decision and are **[TBD]** until taken.

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Sources: Oct-13 deck slides 10–11 and one-pager (S-01, S-02); original counsel messages of 5 Oct 2026 (M-19, Outlook locators in SOURCE_LEDGER.md); Approved_Submission_Corrections_2026-10-09.txt item 6 (M-06); DECISIONS.md D1, D3; founder decisions of 15 Oct 2026 (S-44).